

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
DENNIS WHITE AND ALIYA WILLIAMS,

Plaintiffs,

SUMMONS

Index No.:

*-against-*THE CITY OF NEW YORK, NYPD POLICE OFFICER
ALBINO CAZARES, Badge No. 7512, NYPD
SERGEANT PASQUALE PELLEGRINO, Badge No.
3494, and NYPD POLICE OFFICERS JOHN/JANE
DOES NUMBERS 1-10,The Basis of Venue is:
Location of IncidentPlaintiffs designates Kings
County as the place of trial.Defendants.
----- X**To the above-named Defendants:**

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 29, 2023

Yours, etc.

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES, PLLC
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Our File No.: P1065

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER ALBINO CAZARES, BADGE NO. 7512, NYPD 90th
Precinct; 211 Union Ave, Brooklyn, NY 11211

NYPD SERGEANT PASQUALE PELLEGRINO, Badge No. 3494, 90th Precinct; 211
Union Ave, Brooklyn, NY 11211

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
DENNIS WHITE AND ALIYA WILLIAMS,

Plaintiffs,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ALBINO CAZARES, Badge No. 7512, NYPD
SERGEANT PASQUALE PELLEGRINO, Badge No.
3494, and NYPD POLICE OFFICERS JOHN/JANE
DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiffs DENNIS WHITE AND ALIYA WILLIAMS, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint therein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On the evening of April 15, 2023, Plaintiffs DENNIS WHITE and ALIYA WILLIAMS, while lawfully in the vicinity of 211 Union Ave, Brooklyn, NY 11211, were subject to an unlawful seizure, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiffs were subjected to use of excessive force in the form of verbal threats from Defendant NYPD SERGEANT PASQUALE PELLEGRINO, Badge No. 3494, to subdue Plaintiff DENNIS WHITE with a taser before ordering Defendant NYPD POLICE OFFICER ALBINO CAZARES, Badge No. 7512, to unlawfully arrest both Plaintiffs, causing physical, mental, and emotional injuries. Plaintiffs were then unlawfully imprisoned at the 90th Precinct Police Station for approximately twenty-four (24) hours until Plaintiffs were released. Plaintiffs were denied the right to due process and a fair trial, as well as their rights under 2021 N.Y.C. Local Law No. 48 Admin. Code §§ 8-

8802, and their State and Federal constitutional common law rights when the individual defendants unlawfully confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied Plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiffs DENNIS WHITE AND ALIYA WILLIAMS are residents of the State of New York.

3. NYPD POLICE OFFICER ALBINO CAZARES, Badge No. 7512, is and was at all times relevant therein, an officer, employee, and agent of the New York City Police Department.

4. NYPD POLICE OFFICER ALBINO CAZARES, Badge No. 7512, was at all times relevant therein, assigned to the 90th Precinct Detective Squad.

5. NYPD POLICE OFFICER ALBINO CAZARES, Badge No. 7512, is being sued in his individual and official capacity.

6. NYPD SERGEANT PASQUALE PELLEGRINO, Badge No. 3494, is and was at all times relevant therein, an officer, employee, and agent of the New York City Police Department.

7. NYPD SERGEANT PASQUALE PELLEGRINO, Badge No. 3494, was at all times relevant therein, assigned to the 90th Precinct Detective Squad.

8. NYPD SERGEANT PASQUALE PELLEGRINO, Badge No. 3494, is being sued in his individual and official capacity.

9. NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOES NUMBERS 1-10 are and were at all times relevant therein officers, employees, and agents of the New York City Police Department.

10. NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOES NUMBERS 1-10 are being sued in their individual and official capacities.

11. At all times relevant therein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were always acting for and on behalf of the New York City Police Department at all times relevant therein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against THE CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. More than thirty (30) days have elapsed since service of said Notice of Claim were filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On the evening of April 15, 2023, Plaintiffs DENNIS WHITE and ALIYA WILLIAMS were lawfully present in the vicinity of 211 Union Ave, Brooklyn, NY 11211, when the defendant police officers unlawfully seized, confined, subjected to excessive force, falsely arrested, and falsely imprisoned Plaintiffs without probable cause or legal justification.

18. On the day of the relevant incident, Plaintiffs were attempting to gather the personal belongings of Plaintiff DENNIS WHITE from Defendant NYPD SERGEANT PASQUALE PELLEGRINO, Badge No. 3494, who was making the process difficult.

19. After Plaintiffs were able to secure the belongings, Plaintiff DENNIS WHITE was finishing getting dressed when Defendant NYPD SERGEANT PASQUALE PELLEGRINO, Badge No. 3494, approached Plaintiffs and began accosting and threatening them, specifically threatening to use his taser against Plaintiff DENNIS WHITE.

20. Plaintiff ALIYA WILLIAMS began recording the interaction on Plaintiff DENNIS WHITE's cell phone.

21. It was at this point that Defendant NYPD SERGEANT PASQUALE PELLEGRINO, Badge No. 3494, ordered Defendant NYPD POLICE OFFICER ALBINO CAZARES, Badge No. 7512, to unlawfully arrest both Plaintiffs.

22. At no time relevant therein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

23. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

24. Plaintiffs did not resist arrest.

25. Plaintiffs were then unlawfully searched, fingerprinted, photographed, and detained in a holding cell. No Miranda recitations were given, nor were the charges ever explained to the Plaintiffs.

26. The defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiffs committed a crime.

27. On or about April 16, 2023, after approximately twenty-four (24) hours in unlawful custody, Plaintiffs were released.

28. Some of the defendant officers observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably seizing, using excessive force, falsely arresting and imprisoning, maliciously prosecuting, and denying Plaintiffs the right to due process and a fair trial.

29. The unlawful seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiffs' right to a fair trial by the individually named defendants caused Plaintiffs to sustain economic injuries, physical injuries, specifically a torn rotator cuff in Plaintiff ALIYA WILLIAMS's right shoulder, as well as psychological and emotional trauma.

FIRST CAUSE OF ACTION
Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

30. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length therein.

31. The individually named police officer defendants while acting in concert and within the scope of their authority, caused Plaintiffs to be unlawfully seized, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

32. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, psychological, and economic injuries.

SECOND CAUSE OF ACTION
False Arrest and False Imprisonment

33. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length therein.

34. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

35. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

36. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the CITY OF NEW YORK and the New York City Police Department, who are therefore responsible for their conduct.

37. The CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

38. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION
Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights
Denial of Right to Fair Trial/Due Process

39. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length therein.

40. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

41. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

42. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

43. In withholding/creating false evidence against Plaintiffs DENNIS WHITE and ALIYA WILLIAMS, and in providing/withholding information with respect thereto, defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the

United States and to be free from deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

44. As a result of the foregoing, Plaintiffs DENNIS WHITE and ALIYA WILLIAMS sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, physical injuries, and deprivation of their constitutional rights.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the CITY OF NEW YORK and the New York City Police Department, which are therefore responsible for their conduct.

46. The CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligence

48. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length therein.

49. Defendants owed a duty of care to Plaintiffs.

50. To the extent defendants claim that the injuries to Plaintiffs by the Defendant Police Officers was unintentionally caused and that the force used by the defendants against them was unintentional, then the defendants breached that duty of care by unlawfully seizing, using excessive force, falsely arresting and imprisoning, maliciously prosecuting, and denying Plaintiffs

the right to due process and a fair trial, causing them physical pain and injury, as well as psychological and emotional injury.

51. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

52. All of the foregoing occurred without any fault or provocation by Plaintiffs.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the CITY OF NEW YORK and the New York City Police Department, which are therefore responsible for their conduct.

54. The CITY OF NEW YORK, as the employer of the Officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION
Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

56. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length therein.

57. The use of excessive force by defendants constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the CITY OF NEW YORK and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION
Individual Defendant Officers' Violation of Plaintiffs' AC 8-8802 Rights

59. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length therein.

60. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

61. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

62. The Defendant Officers, while in uniform, unlawfully seized, used excessive force, falsely arrested and imprisoned Plaintiffs, further causing their detention for approximately twenty-four (24) hours in total.

63. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and were otherwise damaged and injured.

NINTH CAUSE OF ACTION
Individual Defendant Officers' Failure to Intervene in Violation of
Plaintiffs' AC 8-8802 Rights

64. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length therein.

65. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

66. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

67. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs' AC 8-8802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

68. Defendants failed to intervene to prevent the unlawful conduct described therein, and thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

69. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and were otherwise damaged and injured.

TENTH CAUSE OF ACTION
City-Employer's Liability for Defendant Officers' Violation of
Plaintiffs' AC 8-8802 Rights

70. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length therein.

71. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

72. The CITY OF NEW YORK, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

73. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

74. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

75. The Defendant Officers, while in uniform, unlawfully, used excessive force, falsely arrested and imprisoned Plaintiffs, further causing their detention for approximately twenty-four (24) hours in total.

76. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and were otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION
City-Employer’s Liability for Defendant Officers’ Failure to Intervene
in Violation of Plaintiffs’ AC 8-8802 Rights

77. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length therein.

78. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

79. The CITY OF NEW YORK, as the employer of the covered individual Defendant Officers, is liable to the Plaintiffs for the wrongdoing of the covered individual Defendant Officers.

80. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

81. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C Admin. Code §§ 8-8802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

82. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs’ AC 8-8802 rights against unreasonable search and seizure and excessive force, had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described therein, and thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

84. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and were otherwise damaged and injured.

TWELFTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

85. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length therein.

86. By the actions described therein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs, DENNIS WHITE and ALIYA WILLIAMS. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

87. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the CITY OF NEW YORK and the New York City Police Department, which are therefore responsible for their conduct.

89. The CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

91. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length therein.

92. By the actions described therein, Defendants engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to Plaintiffs.

93. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the CITY OF NEW YORK and the New York City Police Department, which are therefore responsible for their conduct.

95. The CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTEENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

97. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length therein.

98. The CITY OF NEW YORK and its employees, servants, and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

99. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FIFTEENTH CAUSE OF ACTION
Failure to Intervene

100. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length therein.

101. The defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described therein.

103. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

104. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the CITY OF NEW YORK and the New York City Police Department, which are therefore responsible for their conduct.

106. The CITY OF NEW YORK, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTEENTH CAUSE OF ACTION
Violation of Article I, § 12 of the New York State Constitution

108. The Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length therein.

109. Such conduct breached the protections guaranteed to Plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention Plaintiffs were aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

110. As a direct and proximate result of defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic, and emotional injuries, as well as a deprivation of liberty.

111. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

112. As a result of the above unconstitutional conduct, the CITY OF NEW YORK is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

113. Plaintiffs thereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs DENNIS WHITE and ALIYA WILLIAMS demand judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit therein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 29, 2023

Yours, etc.



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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER ALBINO CAZARES, BADGE NO. 7512, NYPD 90th
Precinct; 211 Union Ave, Brooklyn, NY 11211

NYPD SERGEANT PASQUALE PELLEGRINO, Badge No. 3494, 90th Precinct; 211
Union Ave, Brooklyn, NY 11211

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES, PLLC.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 29, 2023



CAITLIN ROBIN, ESQ.